For that moment we were technically free, and there was pandemonium in the court. But we were rearrested even before Judge de Wet left his seat. Lieutenant Swanepoel clapped each of us on the shoulder and said, “I am arresting you on a charge of sabotage,” and we were herded back to our cells. Even so, this was a blow to the government, for they now had to go back to the drawing board in the case they were calling the trial to end all trials.

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The state redrew their indictment and we were back in court in early December. We all sensed that in the interim Justice de Wet had grown more hostile to us. We suspected his previous independence had brought down the wrath of the government and pressure had been applied. The new charges were read: we were alleged to have recruited persons for sabotage and guerrilla warfare for the purpose of starting a violent revolution; we had allegedly conspired to aid foreign military units to invade the republic in order to support a Communist revolution; and we had solicited and received funds from foreign countries for this purpose. The orders for munitions on the part of the accused, said Yutar melodramatically, were enough to blow up Johannesburg.

The registrar then requested our pleas. We had agreed not to plead in the traditional manner but to use the moment to show our disdain for the proceedings.

“Accused number one, Nelson Mandela, do you plead guilty or not guilty?”

I rose and said, “My Lord, it is not I, but the government that should be in the dock. I plead not guilty.”

“Accused number two, Walter Sisulu, do you plead guilty or not guilty?”

Sisulu: “The government is responsible for what has happened in this country. I plead not guilty.”

Justice de Wet said he was not interested in hearing political speeches, that we should merely plead not guilty or guilty. But his direction was ignored. Each of the accused suggested that it was the government that was criminal before pleading not guilty.